

Subject: Law

Production of Courseware

 - Content for Post Graduate Courses



Paper : Advanced Constitutional Law

Module : Judicial Independence



Component - I - Personal Details

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Component - I (B) Description of Module

	Description of Module
Subject Name	Law
Paper Name	Advanced Constitutional Law
Module Name/Title	Judicial Independence
Pre-requisites	A well-functioning, efficient and independent judiciary is an essential requirement for a fair, consistent and neutral administration of justice.
Objectives	To provide an understanding that judges have the ultimate responsibility for decisions regarding freedoms, rights and duties of natural as well as legal persons within their jurisdiction.



Component - II

Module 33 **Judicial Independence**

Structure:

1. Learning outcome
2. Introduction
3. Meaning of judicial Independence
4. Components
5. Constitutional Provisions
6. Transfer of Judges
7. Collegium System
8. Summary

Learning Outcome:

After going through this lesson on Independence of Judiciary, we shall be able to learn that:

- Judges have the ultimate responsibility for decisions regarding freedoms, rights and duties of natural and legal persons within their jurisdiction.
- The independence of each individual judge safeguards every person's right to have their case decided solely on the basis of the law, the evidence and facts, without any improper influence.
- A well-functioning, efficient and independent judiciary is an essential requirement for a fair, consistent and neutral administration of justice.
- Consequently, judicial independence is an indispensable element of the right to due process, the rule of law and democracy.

Introduction:

Independence of the judiciary means that the judiciary as an organ of the government should be free from influence and control of the other two organs i.e. the executive and the legislature, of the government. Freedom from the influence and control of the executive is of crucial importance. Every democratic country adopts various means to ensure freedom of the judiciary and thereby to ensure individual freedom. The Constitution of India has provided for an independent and impartial judiciary in India as it can only protect the rights of the individual and provide equal justice to all without fear or favour. The U.S.A. has adopted system of separation of powers to ensure independence of the judiciary. But in constitutional systems based on the concept of Parliamentary sovereignty, the adoption of separation of powers is ruled



out. This is the case in England. This is also partly the case in India, for in India, the doctrines of Parliamentary and constitutional sovereignty are blended together.

Historical background:

The concept of independence of Judiciary took time to flourish in England. Earlier the Judges used to hold the position during the Crown's pleasure and like any other servant he could be dismissed by the King at will. Thus the Judges were subordinate to the Executive. This subordination naturally led the Judges favour the royal prerogative. The judicial independence was secured by the Act of Settlement, 1701. This statute formally recognised the principles of security of judicial tenure by establishing that High Court Judges and Lords Justice of Appeal hold office during good behaviour. Appropriate and formal mechanisms had to be in place before a judge could be removed. Since the Act of Settlement it has only been possible to remove a senior judge from office through an Address to the Queen was agreed by both Houses of Parliament.

NEED FOR THE INDEPENDENCE OF THE JUDICIARY

The basic need for the independence of the judiciary rests upon the following points:

1. **To check the functioning of the organs:** Judiciary acts as a watchdog by ensuring that all the organs of the state function within their respective areas and according to the provisions of the constitution. Judiciary acts as a guardian of the constitution and also aids in securing the doctrine of separation of powers.
2. **Interpreting the provisions of the constitution:** It was well known to the framers of the constitution that in future the ambiguity will arise with the provisions of the constitution so they ensured that the judiciary must be independent and self-competent to interpret the provision of the constitution in such a way to clear the ambiguity but such an interpretation must be unbiased i.e. free from any pressure from any organs like executive. If the judiciary is not independent, the other organs may pressurize the judiciary to interpret the provision of the constitution according to them. Judiciary is given the job to interpret the constitution according to the constitutional philosophy and the constitutional norms.
3. **Disputes referred to the judiciary:** It is expected of the Judiciary to deliver judicial justice and not partial or committed justice. By committed justice we mean to say that when a judge emphasizes on a particular aspect while giving justice and not considering all the aspects involved in a particular situation. Similarly judiciary must act in an unbiased manner.

The framers of the Indian Constitution at the time of framing of our constitution were concerned about the kind of judiciary our country should have. This concern of the members of the constituent assembly was responded by Dr. B.R. Ambedkar in the following words:



“There can be no difference of opinion in the House that our judiciary must be both independent of the executive and must also be competent in itself. And the question is how these two objects can be secured”.

The question that arises at first instance in our minds is that what made the framers of our Constitution to be so much concerned about providing the separate entity to the judiciary and making itself competent.

The answer to this question lies in the very basic understanding that so as to secure the stability and prosperity of the society, the framers at that time understood that such a society could be created only by guaranteeing the fundamental rights and the independence of the judiciary to guard and enforce those fundamental rights. Also in a country like India, the independence of the judiciary is of utmost importance in upholding the pillars of the democratic system hence ensuring a free society.

It is a well-known fact that the independence of the judiciary is the basic requisite for ensuring a free and fair society under the rule of law. Rule of law that is responsible for good governance of the country can be secured through unbiased judiciary.

The doctrine of Separation of Powers which was brought into existence to draw upon the boundaries for the functioning of all the three organs of the state: Legislature, Executive and the Judiciary, provides for a responsibility to the judiciary to act as a watchdog and to check whether the executive and the legislature are functioning within their limits under the Constitution and not interfering in each others functioning. This task given to the judiciary to supervise the doctrine of separation of powers cannot be carried on in true spirit if the judiciary is not independent in itself. An independent judiciary supports the base of doctrine of separation of powers to a large extent.

It is theoretically very easy to talk about the independence of the judiciary as for which the provisions are provided for in our Constitution, but these provisions introduced by the framers of our Constitution can only initiate towards the independence of the judiciary. The major task lies in creating a favorable environment for the functioning of the judiciary in which all the other state organs functions in cooperation so that the independence of the judiciary can be achieved practically. The independence of the judiciary has also to be guarded against the changing economic, political and social scenario.

Whenever there is a talk regarding the independence of the judiciary, there is also a talk of the restrictions that must be imposed on the judiciary as an institution and on the individual judges that forms a part of the judiciary. In order to ensure smooth functioning of the system there must be a right blend of the two.



JUDICIAL INDEPENDENCE-- MEANING

The meaning of the independence of the judiciary is still not clear after years of its existence. Our Constitution by the way of the provisions just talks of the independence of the judiciary but it is nowhere defined what actually is the independence of the judiciary.

The primary talk on the independence of the judiciary is based on the doctrine of separation of powers which holds its existence from several years. The doctrine of separation of powers talks of the independence of the judiciary as an institution from the executive and the legislature. The principle of independence of the judiciary has been laid down in various human rights instruments, including the Universal Declaration of Human Rights (Article 10)¹ and the International Covenant on Civil and Political Rights (Article 14)². There are also a number of UN standards, in particular the Basic Principles on the Independence of the Judiciary endorsed by the United Nations General Assembly in 1985³ and the Bangalore Principles of Judicial Conduct of 2002⁴. Within the European framework, the right to an independent and impartial tribunal is guaranteed by Article 6 of the European Convention on Human Rights⁵ (ECHR). Apart from the ECHR, there exist a number of more detailed texts, among them the Council of Europe Recommendation on Judges: Independence, Efficiency and Responsibilities adopted by the Committee of Ministers in 2010. In the broader OSCE region, participating States have committed themselves to ensuring the independence of the judiciary in the Copenhagen Document (1990)⁶, the Moscow Document (1991)⁷ and the Istanbul Document (1999)⁸. These Commitments were recalled and specified in the Brussels Declaration on Criminal Justice Systems and in the Ministerial Council's Brussels Decision on Organized Crime. At the Ministerial Council meeting in Helsinki in 2008, Organization for Security and Cooperation in Europe (OSCE) participating States were encouraged to enhance their efforts to strengthen this aspect of the rule of law. The OSCE/ Office of Democratic Institutions and Human Rights's (ODIHR), Kyiv Recommendations on Judicial Independence in

¹ www.un.org/en/documents/UDHR (accessed on Dec.22,2014)

² <https://treaties.un.org/doc/Publication/UNTS/Volume%20999/volume-999-I-14668-English.pdf> (accessed on Dec.22,2014)

³ <http://www.ohchr.org/EN/ProfessionalInterest/Pages/IndependenceJudiciary.aspx> (accessed on Dec.22,2014)

⁴ http://www.unodc.org/pdf/crime/corruption/judicial_group/Bangalore_principles.pdf (accessed on Dec.22,2014)

⁵ www.echr.coe.int/Documents/Convention_ENG.pdf (accessed on Dec.23,2014)

⁶ <https://www.oscepa.org/publications/reports/special-reports/election-observation-reports/documents/1344-osce-copenhagen-document-1990-eng/file> (accessed on Dec.22,2014)

⁷ <http://www.osce.org/odihr/elections/14310> (accessed on Dec.23,2014)

⁸ <http://www.osce.org/node/39569> (accessed on Dec.23,2014)



Eastern Europe, South Caucasus and Central Asia were elaborated against the background of the above-mentioned international standards.⁹

The other meaning of the judicial independence can be found out by looking at the writings of the scholars who have researched on the topic. Scholars have followed the “constituent mechanism” (i.e. what constitutes the judiciary) to define the independence of the judiciary. Scholars try to define judiciary by talking about the independence of the judges which constitutes judiciary. Therefore the independence of the judiciary is the independence of the exercise of the functions by the judges in an unbiased manner i.e. free from any external factor.

So the independence of the judiciary can be understood as the independence of the institution of the judiciary and also the independence of the judges which forms a part of the judiciary.

JUDICIAL INDEPENDENCE-- COMPONENTS

The components of the independence of the judiciary as talked of here refers to some of the requisite terms and conditions which are so necessary that if they are absent, the independence of the judiciary also cannot exist. It is very difficult to lay down certain set conditions as law is dynamic in itself and of the changing economic, political and social scenario. Despite that, Indian Constitution has provided for components, which can be said to be responsible for judicial independence.

Constitutional provisions –

Many provisions are provided in our Constitution to ensure the independence of the judiciary, which are discussed below:

1. **Security of Tenure:** The judges of the Supreme Court and High Courts have been given the security of the tenure. Once appointed, they continue to remain in office till they reach the age of retirement which is 65 years in the case of judges of Supreme Court¹⁰ and 62 years in the case of judges of the High Courts¹¹. They cannot be removed from the office except by an order of the President and that too on the ground of proven misbehavior and incapacity. A resolution has also to be accepted to that effect by a majority of total membership of each House of Parliament and also by a majority of no less than two third of the members of the house present and voting. Procedure is so complicated that there has been no case of the removal of a Judge of Supreme Court or High Court under this provision.
2. **Salaries and Allowances:** The salaries and allowances of the judges is also a factor which makes the judges independent as their salaries and allowances are fixed and are not subject to a vote of the legislature. They are charged on the

⁹ <http://www.osce.org/odihr/KyivRec> (accessed on Dec.23,2014)

¹⁰ Constitution of India, Art. 124(2)

¹¹ *Ibid.*, Art. 217(1)



Consolidated Fund of India in case of Supreme Court judges and the Consolidated Fund of state in the case of High Court judges. Their emoluments cannot be altered to their disadvantage¹² except in the event of grave financial emergency.

3. **Powers and Jurisdiction of Supreme Court:** Parliament can only add to the powers and jurisdiction of the Supreme Court but cannot curtail them. In the civil cases, Parliament may change the pecuniary limit for the appeals to the Supreme Court. Parliament may enhance the appellate jurisdiction of the Supreme Court. It may confer the supplementary powers on the Supreme Court to enable it work more effectively. It may confer power to issue directions, orders or writs for any purpose other than those mentioned in Art. 32. Powers of the Supreme Court cannot be taken away. Making judiciary independent.
4. **No discussion on conduct of Judge in State Legislature / Parliament:** Art. 211 provides that there shall be no discussion in the legislature of the state with respect to the conduct of any judge of Supreme Court or of a High Court in the discharge of his duties. A similar provision is made in Art. 121 which lays down that no discussion shall take place in Parliament with respect to the conduct of the judge of Supreme Court or High Court in the discharge of his duties except upon a motion for presenting an address to the President praying for the removal of the judge.
5. **Power to punish for contempt:** Both the Supreme Court and the High Court have the power to punish any person for their contempt. Art. 129 provides that the Supreme Court shall have the power to punish for contempt of itself. Likewise, Art. 215 lays down that every High Court shall have the power to punish for contempt of itself.
6. **Separation of the Judiciary from the Executive:** Art. 50 contains one of the Directive Principles of State Policy and lays down that the state shall take steps to separate the judiciary from the executive in the public services of the state. The object behind the Directive Principle is to secure the independence of the judiciary from the executive. Art. 50 says that there shall be a separate judicial service free from executive control.

The independence of the judiciary as is clear from the above discussion hold a prominent position as far as the institution of judiciary is concerned. It is clear from the historical overview that judicial independence has faced many obstacles in the past specifically in relation to the appointment and the transfer of judges. Courts have always tried to uphold the independence of judiciary and have always said that the independence of the judiciary is a basic feature of the Constitution. Courts have said so because the independence of judiciary is the pre-requisite for the smooth functioning of the Constitution and for a realization of a democratic society based on the rule of law.

¹² *Ibid.*, Art. 125(2)



Transfer of Judges

The question of transfer of a judge from one High Court to another has raised controversies from time to time. During the emergency of 1975, sixteen High Court judges were transferred from one High court to another. In the words of Bhagwati J., in *S.P. Gupta v Union of India*¹³, “What was held by the courts was that the transfers of the High Court Judges during the emergency were made not for the purpose of furthering the cause of national integration but by way of punishment.” As the phraseology of Art. 222(1) stands, neither the consent of the Judge is necessary to his transfer nor is the opinion of the Chief Justice binding on the Government.

In the case of *S P Gupta v Union of India (Judges Transfer Case 1)*¹⁴, unanimously agreed with the meaning of the word 'consultation' as determined in the *Union of India v Sankalchand Himatlal Sheth*¹⁵. It further held that the only ground on which the decision of the government can be challenged is that it is based on mala fide and irrelevant considerations. In doing so, it substantially reduced its own power in appointing the judges and gave control to the executive.

This matter was raised again in the case of *SC Advocates on Record Association v Union of India*¹⁶ (**Judges Transfer Case 2**). In this case, the SC overruled the decision given in *S.P. Gupta v Union of India*¹⁷ and held that in the matter of appointment of judges of High Courts and Supreme Court, the Chief Justice should have the primacy and the appointment of the CJ should be based on seniority. It further held that the Chief Justice must consult his two senior most judges and the recommendation must be made only if there is a consensus among them.

In *re Presidential Reference*¹⁸ (**Judges Transfer Case 3**): A controversy arose again when the CJ recommended the names for appointment without consulting with other judges in 1999. The president sought advice from the SC (*re Presidential Reference*) and a 9 member bench held that an advice given by the CJ without proper consultation with other judges is not binding on the govt. As of now, due to the decision in Judges Transfer Case 2, the appointment of the judges in SC and High Courts are fairly free from executive control. This is an important factor that ensure the independence of the judiciary. The following are other provisions that work towards the same goal :The decision of the *Judges Case* was could never have been intended by the framers of the Constitution as they always set the task of keeping judiciary free from executive and making it self-competent. The decision of

¹³ AIR1982 SC 218

¹⁴ *Ibid.* p.149

¹⁵ [1978] 1 S.C.R 423

¹⁶ AIR1994 SC 268

¹⁷ *Supra* note 6

¹⁸ AIR1999 SC 1



the *Second Judges Case* and the *Third Judges Case* is a praiseworthy step by the Court in this regard.

Most Recent Developments:

The Lok Sabha has recently passed the Constitution (121st Amendment) Bill, 2014 and the National Judicial Appointments Commission (NJAC) Bill, 2014. These bills seek to facilitate setting up of a Commission for the appointment of judges, replacing the 20 years old collegium system which had been under severe criticism. While the Constitution (121st Amendment) Bill, 2014 seeks to put the proposed Commission and its entire composition in the Constitution, the other legislation lays down the procedure to be followed by the proposed body for appointment of Supreme Court judges and transfer and appointment of Chief Justices and other judges of the High Courts.

As per the proposal, Chief Justice of India will head the NJAC. Besides the Chief Justice of India, the judiciary would be represented by two senior judges of the Supreme Court. Two eminent personalities and the Law Minister will be the other members of the proposed body.

To ensure the independence of the judiciary and to allay the fears, the composition of the Commission has been given a Constitutional status to ensure that any future government does not weak the composition through an ordinary legislation.

Collegium System: Meaning: It is a system under which appointments and transfers of judges are decided by a forum of the Chief Justice of India and the four senior-most judges of the Supreme Court. It has no place in the Indian Constitution. This system has its genesis in a series of three judgments, that is now clubbed as “three Judges cases” on appointment of judges as have been discussed in this lesson. The new bill is an attempt to scrap this collegium system of appointment of judges, and proposes a new mechanism under National Judicial Appointment Commission (NJAC) thereby ensuring the independence of judiciary.

Conclusion:

Whenever there is a mention of the independence of the judiciary, there is always a concern about the latent dangers of the judicial independence and there arises the importance of “Judicial Accountability”. The recent development in this regard is the recommendation of the Law Commission for the inclusion of a whistleblower provision, aimed at protecting those making complaints against judges, in a draft bill dealing with the removal of judges of the Supreme Court and High Courts. Introduction of such a bill by the Law Commission is a major step in the direction of making changes to the rigid procedure in our Constitution for the removing of the judges of the Supreme Court and the High Courts.

The final outcome of the above discussion is that the importance of the independence of the judiciary was long ago realized by the framers of the Constitution which has been accepted by the courts by marking it as the basic feature of the



Constitution. It is well known law has to change so as to meet to the needs of the changing society. Similarly judicial independence has to be seen with the changing dimension of the society. Judicial Accountability and Judicial Independence have to work hand in hand to ensure the real purpose of setting up of the institution of judiciary.

